



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

July 25, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 11809
(SEVENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of limited quantities of hazardous materials and limited quantities of waste hazardous materials from more than one offeror to a “designated facility” as defined in § 171.8. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.156(b)(1)(iii) in that more than one offeror is authorized.
5. BASIS: This special permit is based on the show cause letter issued by the Pipeline and Hazardous Materials Safety Administration dated May 16, 2024, in accordance with § 107.121.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Hazardous materials eligible to be transported as limited quantities in accordance with § 173.156	As appropriate	As appropriate	As appropriate

a. Except as specified in paragraph 6.b. below, only hazardous materials that meet the definition of a “consumer commodity” as defined herein may be transported under the terms of this special permit.

b. Hazardous materials that are also wastes may be transported under the terms of this special permit. These hazardous materials must have met the definition of a “consumer commodity” as defined herein before becoming a waste.

c. Under the terms of this special permit, a “consumer commodity” is defined as a material that is packaged and distributed in a form intended or suitable for sale through retail sales agencies or instrumentalities for consumption by individuals for purposes of personal care or household use. This term also includes drugs and medicines.

7. SAFETY CONTROL MEASURES:

a. Packagings must conform to § 173.156(b).

b. Notwithstanding § 177.848(a)(1), the hazardous materials must be segregated in accordance with § 177.848(c) and (d).

c. This special permit does not cover transportation in commerce of limited quantities of hazardous materials or limited quantities of waste hazardous materials from a grantee’s hazardous waste storage facility (distribution center) to a designated facility.

8. SPECIAL PROVISIONS: Transportation is authorized from more than one offeror to a “designated facility” as defined in § 171.8. The “designated facility” must have a permit to handle a limited quantity of a hazardous material or a limited quantity of a waste hazardous materials in accordance with applicable laws and regulations.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "W. Schoonover", is written over a light blue circular stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-13.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: sln/NICKS